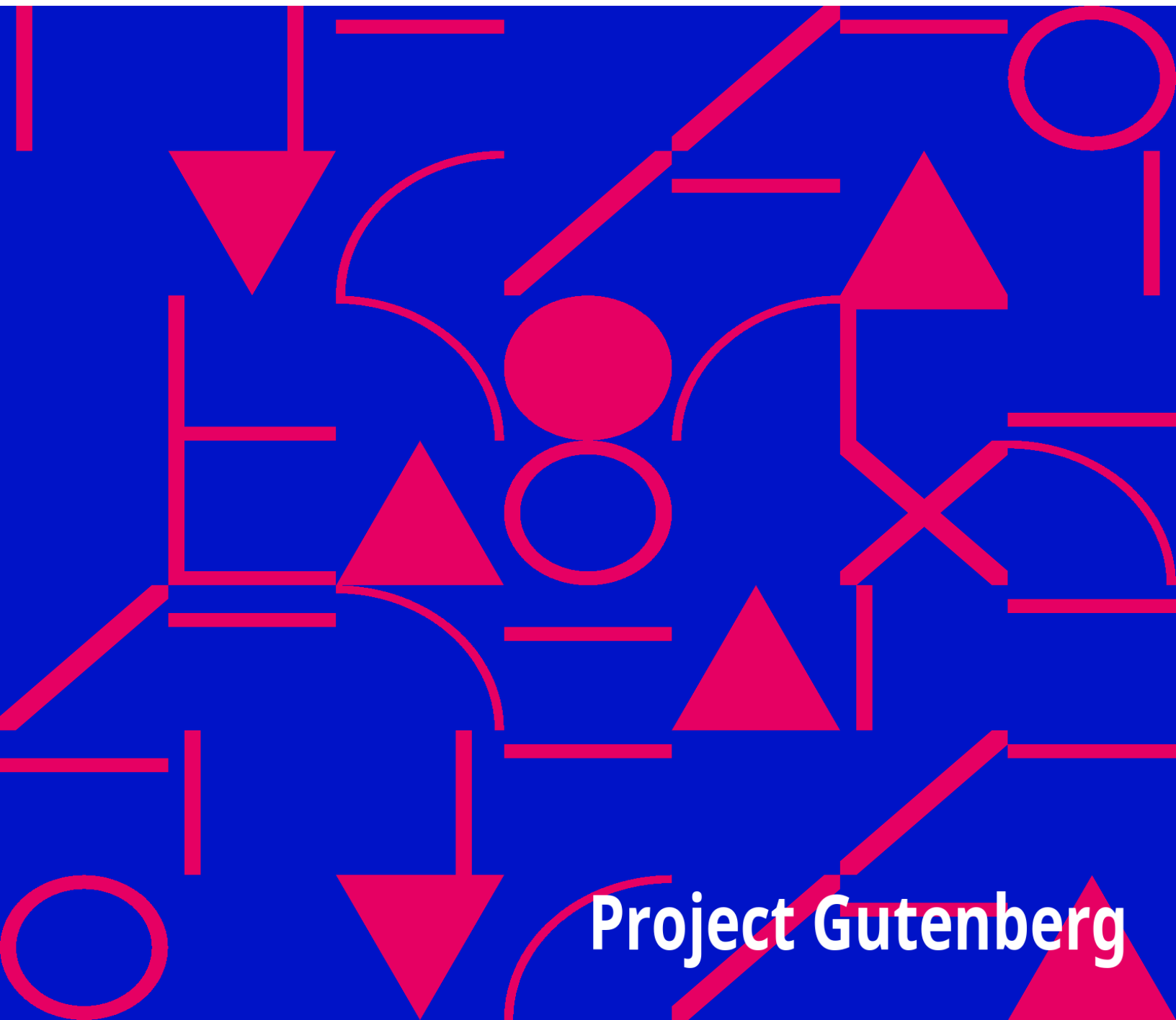


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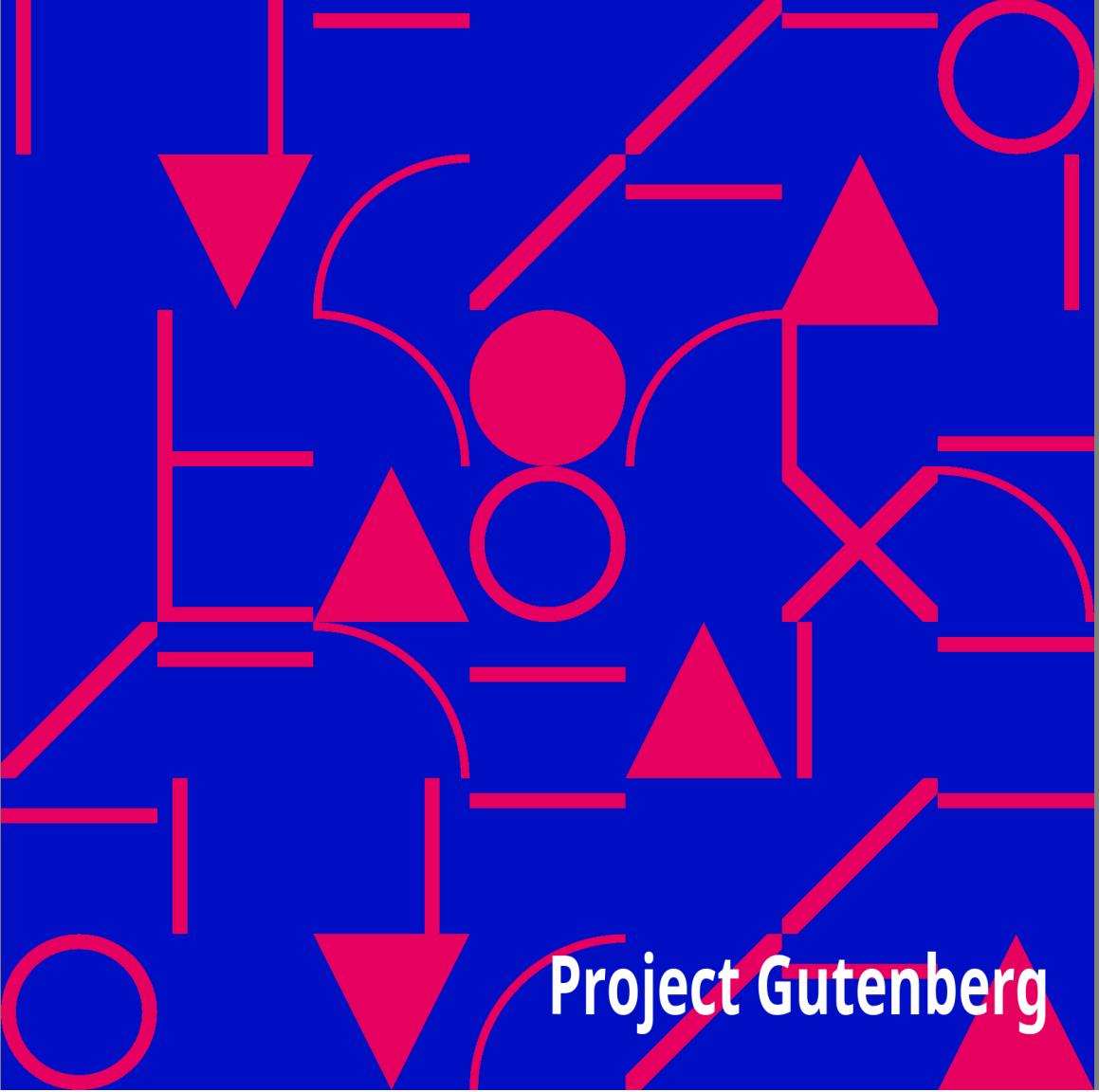
J. Ewing Ritchie

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**THE
NEW SUNDAY LIQUOR LAW
VINDICATED.**

BY J. EWING RITCHIE.

LONDON:
WILLIAM TWEEDIE, 337, STRAND.

1855.

THE
PUBLIC-HOUSE TRADE
AS IT IS:
OR
AN EPITOME OF THE EVIDENCE
TAKEN BEFORE A
COMMITTEE OF THE HOUSE OF COMMONS
IN THE
PARLIAMENTARY SESSIONS OF 1853–4.
BY J. EWING RITCHIE.

THE NEW SUNDAY LIQUOR LAW VINDICATED.

AN Act came into operation in August, denominated “The New Beer Bill,” requiring public-houses to be closed on Sundays, with the exception of the hours 1 to 3 p.m., and 6 to 10 p.m. No sooner was it passed than it was found there was a great decrease in the number of cases of persons charged with drunkenness at the various police stations of the metropolis. Monday, instead of being a heavy day, was the reverse—the magistrates had little or nothing to do. But this great public good was not brought about without inconveniencing some parties. The publicans felt their craft was in danger,—that they were, as Benjamin Disraeli informed them the other day at Plymouth, “in a critical situation;” and that if they acquiesced in the law, the result would be most unsatisfactory, pecuniarily, to themselves.

Accordingly, they have banded themselves into one compact Defence Association—they have taken sweet counsel together—they have organised an opposition all over the land. Whether they have acted wisely is another matter: with the evidence just published in two enormous Blue Books, I think silence would become them better. And so thought the knowing ones in the trade when they accepted the new Bill instead of one that would have been harsher still. The opponents of the Bill—publicans by-the-bye—thus speak of it: Mr. Luce of Hampton Court, “thinks it a despotic and tyrannical Bill.” According to a Mr. Symes, “it is directed against all recreation on Sundays—all relaxation after the toils of the week.” Mr. Palmer said, “The Bill ought to be called the Liberty of the Subject and Licensed Victuallers’ Liberty Curtailment Bill.” I take these extracts from the report of a great meeting in Drury Lane in September. Mr. Lyne, also a publican, writes in the *Daily News*, that “since the curfew bell there never was a measure which produced such general discontent. Notwithstanding the genialness of the weather the social gloom which has settled in the suburbs is indescribable.” The *Daily News*, in the poor hope of saving itself from

annihilation, by opposing the new Bill, and thus becoming the organ of the pot-house says:—"The Pharisees of our drawing-rooms and saloons ought, before they are allowed to hamper and annoy the honest poor by their enactments, to be compelled to share for a season in the labour of the poor, in order that they might have some conception of the privations which they entail upon their victims, and the possible consequences of such privation." In another leader it draws the picture of a working man returning from Brighton and starving in the streets in consequence of the new Bill. Such is an outline of the new Bill, as described by the publicans and their champion, the *Daily News*. Never was there a greater outcry and so little wool. One would fancy from the above remarks that an injustice was being done—such as the world had never witnessed before. You would have thought that at least we had been robbed of *habeas corpus*, or that still more valued right the Englishman's right to grumble. You would have expected every print to be filled with tales of terror—you would expect every man you met to have had a face of woe, and especially that the working classes, who have been robbed of their rights in so atrocious a manner, would have talked of armed resistance, or at least have provided themselves with pikes. The working men have not held a single meeting on the matter—not one single groan has been wrung from them by the unheard of oppression under which they now labour. So callous and indifferent are they—so utterly callous and indifferent are all other classes of society—that the publicans have been compelled to come forward and so do battle for the working man. What disinterested public spirit! English liberty, torn, bruised, bleeding, shunned by all who once worshipped her and whom she once blessed, finds refuge in a public-house! If you want her you must go to the King's Arms, or the Red Lion, and call for a pint of beer.

But I have over-stated my case: there have been some complaints from parties not publicans after all. On looking through a file of the *Daily News* for the last three months I find three such. No. 1, is there placed in the largest type, and headed, "Starvation by Act of Parliament!" You are alarmed. Read on, your fears will soon cease. The writer says:—"Sir, I am a bachelor living in chambers, the resources of my *ménage* do not extend to cooking a dinner, and, like most persons in my situation, I generally dine at a tavern in the neighbourhood. On Sunday, I attended the afternoon service at Saint Paul's Cathedral, and upon my return at five o'clock (what a

circumstantial dog he is!) I repaired with my appetite in excellent condition to my usual dining-place in Fleet-street. I was rather taken aback at finding a closed door frowning upon me; but I rang the bell, and, after a brief delay, a small part of the door was cautiously opened, and there appeared in the aperture the head of a disconsolate looking waiter, who told me that the establishment was closed in compliance with the provision of the New Beer Bill, and that consequently I could not have any dinner." The next deep pang of anguish bursts from the bleeding bosom of a Templar, who says:—"I am a victim of this Act, being scarcely able to get any dinner before the Sunday evening service." Another, a father of a family, says he dines at five, and he finds the beer flat. That I imagine is his own fault. Surely it was not the Act of Parliament did that. We shall next be told when the beer turns sour that was also the Act of Parliament. But perhaps I am wrong. A well-known judge declared Parliament could do every thing but make a woman a man or a man a woman. So, after all, the father of a family may be right, and the New Beer Bill may be the reason why his "arf-and-arf" is flat.

Now, I ask, is it not ridiculous, on the face of it, that an Act of Parliament should be set aside, because a bachelor finds, once upon a time, the door of his favourite hotel shut in his face; or because a Templar says he can't dine till near the time for evening service,—though, for the life of me, I can't see why he cannot; or because the father of a family finds his beer is flat: yet this is all the complaint I find, even in the *Daily News*. We are told the working men are robbed of their rights. I don't find the working men complain,—why should they? They know better than that. The law, as it stands, allows the working man to get all the beer he wants; and if you turn to the evidence lately given before a Committee of the House of Commons, you will find that the working classes are in favour of the change, and that many of them, even the most drunken and dissipated, feel that it would be a good thing if the public-houses could be closed altogether on Sundays. Many of the most respectable publicans in the metropolis gave similar evidence before the same Committee. All the moral and decent people in the country are of a similar opinion. The Provost of Edinburgh shows that when Forbes Mackenzie's Act came into operation in Edinburgh drunkenness and crime decreased; that when the magistrates allowed it to fall into abeyance, drunkenness and crime increased. Evidence was read

before the Committee, by the Rev. Mr. Baylee, to show that some years since a great reformation had been effected by the partial closing of public-houses, and Mr. Balfour showed how the metropolis had improved in this respect within the last few years. The question is, Is this improvement to be continued? No one expects to make men moral by Act of Parliament; no one expects the policeman to take the parson's place; but when we see a great good done,—when we see a fruitful source of crime and poverty and disease arrested, are we to pause because a Templar cannot dine till evening service, or because the father of a family complains that his beer is flat? I forgot the publicans: are they to stop the way? I trust not. It is nonsense to say the working-man is deprived of his beer; he is not. All the beer a man needs he can buy now. The public-houses are allowed to be open sufficiently for that purpose. It is clear what the publicans are fighting for; the welfare of the working-man is a mere pretence,—the rights of Englishmen is a mere pretence,—they want to sell more beer,—to sell the beer that shall intoxicate; all that the new Bill seeks to do is to prevent a man sitting all Sunday night in a public-house, spending his last shilling there, and thus robbing his wife and family of that which should feed and clothe and maintain them during the week. The publicans themselves confess the Sunday trade is an abominable one. More than one publican, examined before the Committee, confessed this to be the case. The evidence of Mr. Wayland, the Marylebone City missionary, and others, all went to show that it is the Sunday drinking that does so much harm, and that was the effect of the late hours at which public-houses were allowed to be kept open.

I have just seen forty-eight circulars returned from various employers of labour in different parts of the metropolis, addressed to them by the Committee of the London Temperance League. The questions proposed were as follows:—"Have you perceived any change with respect to the hour at which your workpeople commence their labours on Monday morning? Have you noticed any improvement, or otherwise, with respect to the aggregate amount of time your workpeople are at their employment during the entire week? What is your opinion as to the general effects of the recent Act or Parliament in relation to the management of public-houses, or upon the happiness and well-being of your workpeople? Is it your opinion that the hours during which spirituous and fermented drinks may be obtained on

Sundays should be subject to further restrictions?” Of these replies thirty-two were favourable,—twelve decidedly the reverse, and four neutral. Thus we have employers in favour of the new Bill,—the poor in its favour,—many of the publicans, who feel the Sunday trade not to be respectable,—in short all classes in its favour except one, and that a section of the publicans who want to sell more beer, and, to do so, cant about the interests of the working classes and the liberty of Englishmen. Cant at all times is loathsome; the cant of the hypocrite is bad enough, but this is infinitely worse. I know nothing more nauseating, nothing more false. Men talk about the cant of the religious—and we have too much of that; but that does no harm: but this cant is intolerable, one’s stomach turns at it; this raising the fair banner of freedom to pander to the demoralization of the public,—this talk by the publican of the rights of the working-man, in order that he may be decoyed into the public-house and made drunk, and robbed of all he has, is cant as fearful and sickening as any ever uttered.

There may be defects in the Bill; I do not say there are not. Like most pieces of parliamentary legislation it is bungling enough, and the convenient latitude attached to the definition of the word “traveller” may rob it of almost all its beneficial effects. That it may also create occasional inconvenience I freely admit, but the case at present is all in its favour; the protest raised against it is the same. But the publicans oppose it. I could understand if the public-houses were altogether closed on Sundays they might say it robbed the public of reasonable refreshment; but they have no pretext of the kind, and their opposition is now, I take it, the strongest argument in favour of the Bill. It is clear, now, why they oppose it; it is not the benefit of the public they seek so much as their own. It is the drinking beyond what is reasonable,—the intoxication of the working classes on the Sunday night,—the repetition of the scenes which have already brought such disgrace on the land, and such misery on our homes, for which they fight. For these reasons they denounce the Bill. For these reasons every well-wisher to his country, every sober man and woman, should give the Bill their hearty support, taking it for good as far as it goes, and seeking, if any change be made, that the change be one which the publicans shall like even less. We are told there is to be a contest; we are told the publicans will not let well alone; we are told next session they will agitate for the removal of this “unjust and iniquitous law.” Let them do so; it will be the worst

day's work for them they ever did. Let them do so, and an agitation will be begun, and a public sentiment will be created, and an array of facts shall be turned against them, as shall shake their trade to its very base. Wisdom would counsel them silence. Wisdom would recommend them not to call public attention to their craft—as they will not follow her guidance,—as they find fault with the Committee and the *Advertiser*, which accepted the Bill rather than see one more stringent passed, the masses can await with confidence the result. The middle classes of this country know the horror of Sabbath drinking too well, the poor of this country know it too well; neither are to be cajoled by a pretence, on the part of the publicans, to advocate their interests or uphold their rights. It is a question of the public on one side and the publicans on the other. The agitation against the Bill is the most shameless, selfish, dishonest agitation ever begun in this country. I know not if it will be continued much longer; I know that if it is, it will have most disastrous results, so far as the publicans are concerned. If even Disraeli will refuse to make political capital out of them, notwithstanding their urgent request to the contrary, they must be in a doleful plight. Their cause must be bad indeed. Their battle must be lost almost before it be begun.

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